

SENATE No. 2743

The Commonwealth of Massachusetts

PRESENTED BY:

Rebecca L. Rausch

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act addressing staged suicides.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Rebecca L. Rausch</i>	<i>Norfolk, Worcester and Middlesex</i>	
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>11/4/2025</i>

SENATE No. 2743

By Ms. Rausch, a petition (accompanied by bill, Senate, No. 2743) (subject to Joint Rule 12) of Rebecca L. Rausch and James K. Hawkins for legislation relative to officer training concerning staged suicides. Public Safety and Homeland Security.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act addressing staged suicides.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 6E of the General Laws, as appearing in the 2024 Official Edition,
2 is hereby amended by adding the following section:-

3 Section 17. The commission and the municipal police training committee established in
4 section 116 of chapter 6 shall jointly establish minimum certification standards for officers
5 investigating the deaths of domestic violence survivors that shall include, but not be limited to,
6 training and continuing education concerning: (1) identification and detection of staged crime
7 scenes; (2) engaging a multidisciplinary team in deaths following a history of domestic violence;
8 and (3) indicators of domestic homicide in suspicious death cases, as defined in section 12 of
9 chapter 209A, including but not limited to: (i) premature death or death in an untimely manner;
10 (ii) an appearance of death due to suicide or accident at the scene; (iii) death following evidence
11 of one romantic partner wanting to end the relationship; (iv) death in the home or place of
12 residence; (v) the body is found by a current or previous romantic partner; (vi) a history of

domestic violence that includes coercive control, strangulation, suffocation or other life-threatening behavior; (vii) the abuser, a child of the abuser or a child of the decedent was the last person to see the decedent alive; (viii) the abuser had control of the scene of death before law enforcement arrived; and (ix) evidence of tampering with the scene of death or other evidence, including but not limited to any indication that the body had been moved.

SECTION 2. Section 3 of Chapter 38 of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out, in lines 35-36, the words “or (18)” and inserting in place thereof the following words:- (18) suspicious death cases, as defined in section 12 of chapter 209A; or (19).

SECTION 3. Chapter 209A of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by adding the following sections:-

Section 12. (a) As used in this section, the following words shall have the following meanings unless the context clearly requires otherwise:

“Close friend”, a person who has maintained regular contact with a domestic violence survivor sufficient to be highly familiar with the survivor’s activities, health and religious or moral beliefs, as attested to in a sworn affidavit to the law enforcement agency investigating the death of the domestic violence survivor. The affidavit must state facts and circumstances demonstrating that familiarity.

“Domestic violence”, abuse or coercive control, as defined in section 1 of this chapter.

“Suspicious death case”, the death of a domestic violence survivor that involves three or more of the following factors: (i) premature death or death in an untimely manner; (ii) an

appearance of death due to suicide or accident at the scene; (iii) death following evidence of one romantic partner wanting to end the relationship; (iv) death in the home or place of residence; (v) the body is found by a current or previous romantic partner; (vi) a history of domestic violence that includes coercive control, strangulation, suffocation or other life-threatening behavior; (vii) the abuser, a child of the abuser or a child of the decedent was the last person to see the decedent alive; (viii) the abuser had control of the scene of death before law enforcement arrived; or (ix) evidence of tampering with the scene of death or other evidence, including but not limited to any indication that the body had been moved.

(b) In a suspicious death case, law enforcement shall: (i) ensure that the personnel investigating the case have timely and successfully achieved the certification standards required under section 17 of chapter 6E; (ii) interview family or household members and close friends, if any, of the domestic violence survivor who can provide information regarding the relevant domestic violence history prior to making any findings as to the manner or cause of death; (iii) request a complete autopsy; and (iv) provide domestic violence survivor services, supports or resources to family or household members and close friends who request such services, supports or resources.

(c) If a suspicious death case is determined not to be a homicide and the investigation is closed, a family or household member or close friend shall have the right to request: (i) copies of any records of the investigation not subject to exemption under chapter 66 or section 97D of chapter 41; and (ii) an autopsy and second opinion from a board-certified forensic pathologist certified by the American Board of Pathology; provided, however, that the autopsy shall not destroy the chain of custody.

56 SECTION 4. This act shall take effect on January 1, 2027. Section 3 shall apply to
57 suspicious death case investigations opening or arising on or after July 1, 2027.